



Bill Number: S.B. 1124

Werner Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Requires a health profession regulatory board with probable cause to believe that a health professional may be unable to practice safely or competently to vote on whether to require an evaluation of the health professional.
2. Limits health profession regulatory board hearing notice requirements for proposed licensee evaluations to psychological or psychiatric evaluations.
3. Clarifies that a health profession regulatory board retains authority to summarily suspend a license under existing law.

WERNER FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1124
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 32, chapter 32, article 1, Arizona Revised
3 Statutes, is amended by adding section 32-3230.03, to read:

4 32-3230.03. Evaluations; notice; hearing; results;
5 reimbursement

6 A. [IF A HEALTH PROFESSION REGULATORY BOARD DETERMINES THAT THERE
7 IS PROBABLE CAUSE TO BELIEVE THAT A HEALTH PROFESSIONAL MAY NOT BE ABLE TO
8 PRACTICE SAFELY OR COMPETENTLY, THE HEALTH PROFESSION REGULATORY BOARD
9 SHALL VOTE ON WHETHER TO REQUIRE AN EVALUATION OF THE HEALTH PROFESSIONAL
10 AS PRESCRIBED IN THIS SECTION.] AT LEAST FOURTEEN DAYS BEFORE A HEALTH
11 PROFESSION REGULATORY BOARD MEETS TO VOTE TO REQUIRE A PSYCHOLOGICAL[;]
12 [OR] PSYCHIATRIC [OR- PHYSICAL] EVALUATION OF A HEALTH PROFESSIONAL, THE
13 HEALTH PROFESSION REGULATORY BOARD SHALL PROVIDE A NOTICE TO THE HEALTH
14 PROFESSIONAL THAT INCLUDES A SUMMARY OF THE ACTION OR COMPLAINT THAT
15 PROMPTED THE HEALTH PROFESSION REGULATORY BOARD TO CONSIDER REQUIRING THE
16 EVALUATION.

17 B. THE HEALTH PROFESSIONAL MAY PROVIDE A WRITTEN RESPONSE TO THE
18 NOTICE REQUIRED BY SUBSECTION A OF THIS SECTION. THE HEALTH PROFESSION
19 REGULATORY BOARD SHALL CONSIDER ANY WRITTEN RESPONSE BY THE HEALTH
20 PROFESSIONAL WHEN DETERMINING WHETHER TO REQUIRE A PSYCHOLOGICAL[;] [OR]
21 PSYCHIATRIC [OR- PHYSICAL] EVALUATION. THE HEALTH PROFESSIONAL HAS THE
22 RIGHT TO APPEAR AT A HEARING AND TESTIFY BEFORE THE HEALTH PROFESSION
23 REGULATORY BOARD REGARDING THE MATTER THAT IS THE SUBJECT OF THE NOTICE
24 REQUIRED BY SUBSECTION A OF THIS SECTION.

25 C. IF THE HEALTH PROFESSION REGULATORY BOARD VOTES TO REQUIRE A
26 PSYCHOLOGICAL[;] [OR] PSYCHIATRIC [OR- PHYSICAL] EVALUATION OF A HEALTH
27 PROFESSIONAL, THE HEALTH PROFESSION REGULATORY BOARD SHALL PROVIDE THE
28 HEALTH PROFESSIONAL WITH A COPY OF THE COMPLETED EVALUATION. IF THE
29 HEALTH PROFESSION REGULATORY BOARD DOES NOT TAKE ANY DISCIPLINARY OR

Senate Amendments to S.B. 1124

1 NONDISCIPLINARY ACTION AS A RESULT OF THE EVALUATION, THE HEALTH
2 PROFESSION REGULATORY BOARD SHALL REIMBURSE THE HEALTH PROFESSIONAL FOR
3 ANY COSTS THE HEALTH PROFESSIONAL INCURRED IN OBTAINING THE EVALUATION.

4 [D. THIS SECTION DOES NOT SUPERSEDE A HEALTH PROFESSION REGULATORY
5 BOARD'S AUTHORITY TO SUMMARILY SUSPEND A LICENSE PURSUANT TO SECTION
6 41-1064.]

7 Enroll and engross to conform

8 Amend title to conform

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C: MH

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